

Abdul Kadir v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 January 2017 · Writ-C No. 2953 of 2017 · Writ-C No. 2953 of 2017 ·
Writ disposed; petitioner left to Clause 6.5.

HEADNOTE

A consumer aggrieved by an electricity bill, who sought a writ directing decision of a representation without identifying the governing provision, was left to the statutory remedy under Clause 6.5 of the Electricity Supply Code, 2005. The petition was disposed of without examining the bill or directing the authorities to decide the representation.

FACTUAL SUMMARY

The petitioner, Abdul Kadir, had been given an electric connection by the respondents and challenged a bill issued for electricity consumed. He had filed a representation and asked the High Court to direct the authorities to decide it. Counsel for the petitioner could not identify the provision under which the representation had been made. Counsel for the respondents submitted that the petitioner could take the remedy under Clause 6.5 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-statutory-remedy

HOLDING

Where a consumer aggrieved by an electricity bill seeks a writ directing decision of a representation but cannot point to the provision under which it was filed, the High Court will not issue that direction and will leave the consumer to the statutory remedy under Clause 6.5 of the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND THE PENDING REPRESENTATION

The Court did not examine the bill or direct the authorities to decide the representation. ¶ 1